

23STCV06015 23STCV06015

County: los-angeles

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Case Number: 23STCV06015 Hearing Date: June 29, 2026 Dept: 406

ACCUCON CORPORATION,

Plaintiff,

v.

P.T. ENTERPRISES, LLC,

et al.,

Defendants.

Case No.: 23STCV06015

Hearing Date: June 29, 2026

[TENTATIVE]

order RE:

defendant autobuilders general
contracting services, inc.'s motion to tax costs

BACKGROUND

On March 17, 2023, Plaintiff Accucon Corporation filed this action against Defendants P.T. Enterprises, LLC and Autobuilders General Contracting Services, Inc. Plaintiff filed the operative Second Amended Complaint on June 3, 2025, asserting causes of action for (1) breach of oral contract, (2) good sold and delivered, (3) open book account,

(4) account stated, (5) foreclosure of mechanics lien, and (6) recovery of statutory penalties, and (7) breach of written contract.

Defendant Autobuilders was the contractor on a certain project owned by Defendant P.T. Enterprises. Plaintiff contracted with Autobuilders to be the subcontractor on the project. This lawsuit arises from an alleged unpaid balance of over \$500,000 owed to Plaintiff.

Trial took place between March 23, 2026 and March 27, 2026, after which the Court issued a decision on April 27, 2026. The Court found Autobuilders liable to Plaintiff for \$456,986.81 and found in favor of Plaintiff for foreclosure of mechanics lien against P.T. Enterprises. Judgment was entered accordingly on May 13, 2026, with interest added and costs/attorney's fees to be subsequently determined.

On May 22, 2026, Plaintiff filed a Memorandum of Costs (MOC) totaling \$29,526.15.

On June 1, 2026, Defendant Autobuilders filed the instant motion to tax costs. Plaintiff filed an opposition on June 16, 2026. Defendant filed a reply on June 18, 2026.

LEGAL STANDARD

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032(b).) Section 1033.5 sets forth the types of costs that are recoverable to the prevailing party as follows: (1) costs that are expressly allowed; (2) costs that are expressly disallowed; and (3) costs that are allowed in the court's discretion. (*Id.*, § 1033.5.) Even where costs are deemed allowable, such costs are only recoverable if they are: (1) reasonably necessary to the litigation and not merely convenient or beneficial to its preparation; and (2) reasonable in amount. (*Ibid.*)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof

is on the party claiming them as costs.” (Sanford v. Rasnick (2016) 246 Cal.App.4th 1121, 1128.) The mere filing of a motion to tax costs can be a proper objection if the challenged costs appear doubtful or improper on their face. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

DISCUSSION

I.

Service of Process (Item 5)

Costs for “[s]ervice of process by a public officer, registered process server, or other means” are expressly recoverable. (Code Civ. Proc., § 1033.5(a)(4).) The MOC claims \$1,611.54 for service of process.

Defendant argues that the fees were not reasonably necessary because Plaintiff personally served trial subpoenas on Defendants or their employees, who were represented by counsel or agreed to appear voluntarily. However, Defendant cites no authority prohibiting service of trial subpoenas on represented parties or parties who have agreed to appear. The subpoenas were reasonably necessary to ensure appearance at trial.

Defendant argues that under Code of Civil Procedure section 1987(b), a subpoena to appear for trial must be served on a party’s attorney. (Reply 2:9-12.) Section 1987(b) states that “the service of a subpoena upon [a party] witness is not required if written notice . . . is served upon the attorney of that party or person.” (Code Civ. Proc., § 1987(b).) This permits written notice to a party’s attorney in lieu of a subpoena. But it does not preclude a subpoena to a party, nor does it require service of a subpoena on the party’s attorney. “Not required” does not equate to “not permitted.”

Defendant also argues that it was not reasonably necessary to subpoena witnesses who did not testify. However, the subpoenas were reasonably necessary at the time they were issued. A party is not required to call all subpoenaed witnesses.

Therefore, the service fees are recoverable.

II.

Court Reporter Fees (Item 11)

“Court reporter fees as established by statute” are expressly recoverable. (Code Civ. Proc., § 1033.5(a)(11).) The MOC claims \$10,439.01 in court reporter fees.

Defendant argues that the cost of transcripts not ordered by the court are not recoverable. (See Code Civ. Proc., § 1033.5(b)(5).) However, Item 11 seeks court reporter fees, not transcript fees. Therefore, the costs are not barred by the Code.

Nonetheless, “where, as in this case, the parties agree to share costs during litigation, the courts will enforce those agreements.” (Anthony v. Li (2020) 47 Cal.App.5th 816, 824.) “[I]f the parties ... wanted to allow recovery of the apportioned fee [by] the prevailing party as an item of cost, they were free to spell this out in their agreement,’ but such a provision will not be read into the agreement.” (Ibid.) “Because the parties agreed to share mediation and court reporter fees equally, without providing for the later recovery of those shared fees by a prevailing party, we see no error or abuse of discretion in the trial court’s taxing those fees as items of costs.” (Id. at p. 825.)

Here, the parties agreed to split the court reporter fees for motions in limine and trial. (Inouye Decl. ¶ 5, Ex. 2-4.) The MOC seeks \$1,696.18 for a 3/10/26 motion in limine; \$1,500 for proceedings on 3/23/2026; and \$1,500 for proceedings on 3/24/2026. These represent costs which the parties agreed to share evenly. There is no indication that the parties agreed for the prevailing party to recover these costs. Therefore, \$4,696.18 is stricken from Item 11.

Defendant requests that the entire \$10,439.01 be stricken. However, the agreement to split costs was limited to motions in limine and trial. Defendant fails to show that the cost-sharing agreement covers any cost above \$4,696.18. Therefore, only \$4,696.18 is stricken from Item 11.

III.

Mediation Fees (Item 15)

The MOC claims \$6,820 in "Other"

costs. Defendant challenges the \$6,350 cost for mediation. As discussed above, where parties agree to share costs without reserving the prevailing party's right to recover its portion, such costs are properly taxed. (Anthony, *supra*, 47 Cal.App.5th at pp. 824-25.) Here, the parties agreed to share the cost of mediation. (Inouye Decl. ¶¶ 3-4, Ex. 1.) Therefore, \$6,350 is stricken from Item 15.

CONCLUSION

Defendant Autobuilders General

Contracting Services, Inc.'s motion to tax costs is GRANTED in the amount of \$11,046.18.